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City Council
City of Haverhill
4 Summer Street
Haverhill, MA 01830

Special Permit Application

119-125 Merrimack Street, Haverhill, MA

City Council Rules and Regulations for Special Permits Information Required

General Criteria: General Special Permit Criteria

1. As required by the Special Permit criteria section of the Zoning Ordinance (Section 10.4.2), in order to grant a Special Permit, a Special Permit Granting Authority must make a written determination "that the proposed use or structure(s) shall not cause substantial detriment to the neighborhood or the City, taking into account the characteristics of the site and of the proposal in relation to that site." Under Section 10.4.2, "[i]n addition to any specific factors that may be set forth in th[e] [zoning] chapter, such determination shall include consideration of each of the following:
2. Community needs served by the proposal.
3. Traffic and pedestrian flow and safety, including parking and loading.
4. Adequacy of utilities and other public services
5. Neighborhood character and social structures
6. Impacts on the natural environment, and
7. Potential fiscal impact, including impact on City services, tax base, and employment.

Specific Findings Under Zoning Ordinance Section 10.4.2

8: Community needs served by the proposal.

9: We are redeveloping a vacant brick building in downtown Haverhill. Previous use was a dentist office on the first floor; stories above have been vacant for many decades.

Zoning District: Waterfront District C (WD-C) District
Permitted Uses: Mixed-use development is permitted with residential above and first floor commercial

Redevelopment of apartments units, modernizations and upgrades. The proposal is to increase the footprint of the building by ~600 square feet, add common space, add an elevator, and develop the following:

Bottom Floors: Davinci Child Center - 56 children EEC licensed high quality childcare program. The children served consists of 36 slots for infants and toddlers (from birth to 2.9 years old) and a PreK classroom of up to 20 children (from 2.9 to 5 years old). This new facility will employ 18-20 fulltime teachers, cooks, maintenance and administrative personnel.

Top 3 Floors: 12 - Units Lofts-Apartments (6x 2 Bedrooms, 6x 1 Bedroom). This will be high end, energy efficient spaces.

10: Traffic and pedestrian flow and Safety, including parking and loading.

11: Careful attention has been given to traffic flow and pedestrian safety in this development plan. The Haverhill Police Department has outlined several concerns typical with this type of institution, specifically during children drop-off and pick-up. We have modified the original plans to satisfy their concerns. This arrangement will also satisfy the requirement of no parking on How Street. Currently the site plans include parking for 10 vehicles: 5 parking spaces are allocated to drop-off and pickup of children and the other 5 parking spaces for tenants. These details of assigned parking spaces are outlined in the provided site plan filed with this Application.

To meet the parking requirements set by the city of ordinance our institution will have a contract to lease 7-10 parking spaces from the parking garage located on the corner of Merrimack and Main Streets. The mentioned garage is within 700 feet walking distance.

12: Adequacy of utilities and other public services.

13: The existing building is already connected to domestic water, fire service, and city sanitary systems, so no major utility extensions are required for this project. The proposed site plan fully complies with Section 6.3.3(8) concerning utilities, security, and emergency systems, ensuring all new connections meet city standards without the need for special approvals. City Departments have raised no concerns about utility availability currently. The project team will continue to collaborate closely with development services to confirm that all utility connections align with the city's expectations and requirements.

14: Neighborhood character and social structures.

15: The building will look amazing once it is cleaned up and the project is completed. The proposed addition is consistent with neighborhood character and social structures, as it will match the existing building in materials. The new annex addition will marginally increase the percentage of footprint on the site.

The children's playground will remove asphalt and replace it with grass and landscaping will improve sightlines of existing site. The dilapidated chain link fence will be replaced with a new black aluminum fence. Unsightly elements such as dumpsters will be shielded to the interior of the site and not visible from the street.

16: Impact on natural environment.

17: There are no expected impacts to the natural environment because of this project. The new annex addition will marginally increase the percentage of footprint on the site and the replacement of asphalt with grass and landscaping will increase permeable areas, allowing for improved natural rainwater infiltration.

18: Potential fiscal impact, including impact on City services, tax base, and employment.

19: This project will have no impact on city services. It is believed that this project will increase the tax base. No impact on schools. This project will create 18-20 fulltime employment opportunities for both teachers and non-teaching staff.

Specific Criteria: Specific Findings Under Zoning Ordinance Section 6.3.3

20. *[These standards apply to special permit applications for development review under*

21. Section 10.1.4 for multifamily, nonresidential or mixed use - omit this section if not applicable]

22. Zoning Ordinance Section 6.3.4 provides exemptions for the following: (a) emergency responses performed by a private entity or a public agency and fire or burglar alarms; (b) municipal uses and structures, including schools; and (c) parades, fairs, or outdoor entertainment between the hours of 7:00 a.m. and 11:00 p.m. so long as the City Council has granted a permit for not more than 10 days. Here, the proposed use [is/is not] exempt for the following reasons:

23. The City Council makes the following findings with respect to the standards set forth in Zoning Ordinance

Section 6.3.3 regarding lighting, noise, landscaping, stormwater management, site development standards, pedestrian and vehicular access, traffic management, aesthetics, utilities, and the City's general standards:

Lighting: The proposed lighting for this project will comply with city standard 6.3.3(1). The existing lot lighting will remain largely unchanged. The exterior of the building will include up-down lights to accentuate the brick façade, and the parking lot will have a light installed for safety and security.

Noise: The project will comply with city standard 6.3.3(2) as it pertains to noise. Construction will abide by the restrictions set forth in Chapter 182 of the Haverhill Code and 310 CMR 7.10 of the Department of Environmental Protection's regulations.

Landscaping: 6.3.3 (3) The children's playground will remove asphalt and replace it with grass and landscaping will improve sightlines of existing site. The dilapidated chain link fence will be replaced with a new 4' black aluminum fence. Four evergreen plants will be planted along the fence.

Stormwater Management: The existing on-site storm line will accommodate the new addition while maintaining its current outfall to the city sewer beneath How Street as per city standard 6.3.3(4). Additionally, the replacement of asphalt with grass and landscaping will increase permeable areas, allowing for improved natural rainwater infiltration.

Site Development Standards: The proposed development plan complies with all site development standards outlined in Section 6.3.3(5). The area of disturbance has been carefully minimized to accommodate the building addition, ensuring the new footprint aligns seamlessly with the existing building.

Pedestrian and Vehicular Access/Traffic Management: Careful attention has been given to traffic flow and pedestrian safety in this development plan ensuring adherence to Section 6.3.3(6). Pedestrian entrances are available in the building's front entrance and the back entrance to the parking lot area. The Haverhill Police Department has outlined several concerns typical with this type of institution, specifically during children drop-off and pick-up. We have modified the original plans to satisfy their concerns. This arrangement will also satisfy the local requirement of no parking on How Street. Currently the site plans include parking for 10 vehicles: 5 parking spaces are allocated to drop-off and pickup of children and the other 5 parking spaces for tenants. This arrangement of designated drop-off solves all issues traffic issues and provides a more secured interaction during drop-off and pickup.

Aesthetics: The proposed design of the building addition complies with the neighborhood compatibility requirement outlined in Section 6.3.3(7). The building addition will closely match the front façade of the existing building.

Utilities/Security/Emergency Systems: The existing building is already connected to domestic water, fire service, and city sanitary systems, so no utility extensions are required for this project. City development services have raised no concerns about utility availability currently. The project team will continue to collaborate closely with development services to confirm that all utility connections align with the city's expectations and requirements.

Other General Standards: The proposed project will cause no substantive change in the current facility's compliance with Section 6.3.3(9). The expansion will not be conducted in a manner as to emit any dangerous, noxious, injurious or otherwise objectionable fire, explosion, radioactive or other hazard; noise or vibration, smoke, dust, odor or other form of environmental pollution; electrical or other disturbance; glare; liquid or solid, refuse or wastes; conditions conducive to the breeding of insects, rodents or other substance, conditions or element in an amount as to affect adversely the surrounding environment. All operations shall be conducted in such a manner to comply with the laws of the Commonwealth of Massachusetts regulating air pollution.

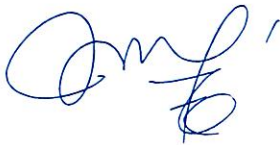
Based upon all the above as well as all the plans and other documents filed with this Application, we believe this Petition meets all the following requirements under Chapter 255 Section 10.4.2 for a Special Permit:

- A. The proposed addition will enhance downtown Haverhill's offerings. The project does not cause substantial detriment to the neighborhood or the City. The Site has an existing structure/use, and the additional will enhance the neighborhood. No objections to this project were received during Pre-development Review.
- B. Community needs for additional affordable apartments and high-quality childcare center are served by this proposal.
- C. Traffic and pedestrian flow and safety have been addressed and the required additional parking for the project is being contracted to the nearby garage.

- D. Adequate utilities and other public services are all supplied for this project. Property is on city water and sewer.
- E. The neighborhood character and structures have been addressed in the architectural designs of this project. The addition fits this lot and will fit in the neighborhood.
- F. There will be no impact to natural environment.
- G. The project will increase the city's tax base, create 18-20 fulltime jobs, provide 12 beautiful apartments and has no adverse impact on City services or City Schools.

Wherefore, the Petitioner would request that the Council approve this Special Permit.

Respectfully submitted.

A handwritten signature in blue ink, appearing to read 'Jony M Perez'.

Jony M Perez, MBA
Chief Executive, Davinci Mini Apts